

**Bodies in Transit(ion): A Sociological Analysis of Invalidation of Transgender Drivers'
Licenses in Kansas & Beyond**

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Introduction: A Hostile Administration

Although the United States has achieved significantly greater equality for the LGBTQ+ community in the past century, many of those advancements have been confined to specifically lesbian, gay, and bisexual people—the LGB. Transgender people continue to face significant social stigma, harassment, and harmful rhetoric targeted towards them, and this has only increased exponentially with the election of President Trump for the second time. The administration, which made “the trans issue” a key talking point in its election campaign, has passed sweeping policies targeting the political and civil rights of transgender individuals. On his very first day in office for his second term, for instance, the President issued Executive Order 14168, titled “Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government,” which requires the federal government to recognize only the male and female sexes and erase all notions of “gender” in policy. This is justified as being “fundamental and incontrovertible reality.”¹ Even the title of the executive order contains language that equates being transgender to being an “extremist,” as if a transgender person’s existence fundamentally attacks womanhood as a whole.

Executive orders like these have emboldened individual states to take things even further. Recent reports indicate that states such as Kansas and Mississippi have gone as far as instantly invalidating thousands of drivers’ licenses for not reflecting the person’s gender assigned at birth. Examining stigma against transgender people through the lens of three sociological theorists in

¹ “Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government,” The White House, January 21, 2025, <https://www.whitehouse.gov/presidential-actions/2025/01/defending-women-from-gender-ideology-extremism-and-restoring-biological-truth-to-the-federal-government/>.

particular—Max Weber, W.E.B. DuBois, and Karl Marx—can help us understand the consequences of the policy, how it came about, and how society can grow beyond it.

Kansas Criminalizing Identity

On February 25, 2026, the independent journalist Erin Reed broke the story reported in a Substack article that she had received a letter from an anonymous Kansas-based activist. The letter (Fig.1) was sent from the Kansas Division of Vehicles and states that “under House Substitute for Senate Bill 244, Kansas-issued driver’s licenses and identification cards must now reflect the credential holder’s ‘sex at birth’”.² Of particular note is that it is mentioned explicitly that there is no provided grace period to obtain a new license, and anyone caught with an invalid license could face a class B misdemeanor, which carries up to 6 months in jail and a \$1,000 fine.³

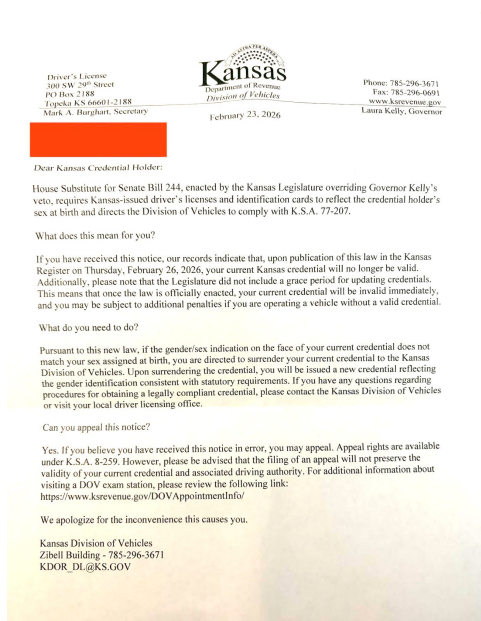


Figure 1: Letter sent by the Kansas Division of Vehicles to transgender Kansans.⁴

² Erin Reed, “Kansas Sends Letters to Trans People Demanding the Immediate Surrender of Drivers Licenses,” *Erin in the Morning*, February 25, 2026, <https://www.erininthemorning.com/p/kansas-sends-letters-to-trans-people>.

³ Jeff Burtka, “Driving without a Valid (or on a Suspended) License in Kansas,” *DrivingLaws*, April 4, 2024, <https://www.drivinglaws.org/resources/driving-without-a-license-kansas.htm>.

⁴ Reed, “Kansas Sends Letters.”

Empathetic Understanding

The first sociological theorist I will employ to examine this issue is Max Weber, who was particularly concerned with how social class, status, and political power intersected to create inequalities that go beyond simply the economic. He also created several methodologies for studying social institutions and social action, and perhaps the most notable is the concept of *verstehen*: using interpretive and empathetic understanding of human behavior to explain social phenomena. In *Economy and Society*, he writes that “accuracy is attained when, through sympathetic participation, we can adequately grasp the emotional context in which the action took place.”⁵

If one takes a Weber-inspired approach of *verstehen* to imagine what it must be like to wake up one morning completely unaware that your drivers’ license has been invalidated overnight, one would realize how unethical such an action is. Imagine, for instance, that you are in a hurry to get to work and happen to not check your mail before leaving. (Also consider that it’s specifically reported that people received *physical letters* rather than emails, the latter of which most people today check first.⁶) Imagine further that you happen to get pulled over on your way to work for being in such a hurry to get there that you were speeding slightly. The officer would then have every right to issue a class B misdemeanor to you just for going five miles over the speed limit, whereas a cisgender person pulled over for going five miles over the speed limit would face no such consequence.

⁵ Max Weber, *Economy and Society: An Outline of Interpretive Sociology*, ed. Guenther Roth and Claus Wittich (Berkeley: University of California Press, 1978), 5.

⁶ Reed, “Kansas Sends Letters.”

If the people who wrote this legislation aren't aware of how inhumane this is, then *verstehen* can help them understand this policy's failings. But it's highly implausible that they aren't aware.

Seeing Yourself Through Hostile Eyes

In addition to a significant amount of evidence that the bills were rushed through the Kansas Senate and House with virtually no public input in what's known as a "gut and go" method,⁷ essentially all of the discrimination against transgender people can be explained through the concept of "othering." This concept, while not directly coined by him, can be traced to the writings of W.E.B. DuBois, the first American sociologist who was also the first Black man to receive a Ph.D. from Harvard University in 1895. In his work *The Souls of Black Folk*, DuBois discusses what he calls "the Veil," or the holistic experience of Blackness and how it involves multiple layers of stigma: a literal perceivable difference that hides "sameness," the creation of a marginalized space, civic exclusion, and the internalization of how others perceive oneself.⁸

DuBois's concept of the Veil and "othering" is primarily used to understand the experiences of Black Americans who experience a "Double Consciousness" of being an American but also a Black person, which can feel in direct conflict with each other. He writes that double-consciousness is the "sense of always looking at one's self through the eyes of others" and a Black man "ever feels his two-ness" and "two warring ideals in one dark body" in American society.⁹

⁷ Jason Alatidd, "Kansas Lawmakers Will Skip Public Input on Transgender Bathroom Bill," *The Topeka Capital-Journal*, January 27, 2026, <https://www.cjonline.com/story/news/politics/government/2026/01/27/kansas-lawmakers-push-transgender-bathroom-bill-without-public-input/88376041007/?gnt-cfr=1&gca-cat=p&gca-uir=false&gca-epti=z11xx88p117550c117550v11xx88&gca-ft=146&gca-ds=sophi&gnt-djm=1>.

⁸ Du Bois, W. E. B., *The Souls of Black Folk*, Edited by Brent Hayes Edwards, Oxford World's Classics, (Oxford University Press, 2008).

⁹ Du Bois, *The Souls of Black Folk*, 8.

This can be applied to the transgender experience to a certain degree. Of course, many (white) transgender people are not immediately, noticeably “other” in the way that Black people are made to be in a society that has for so long elevated whiteness on a podium. However, in a tense political climate, one can internally feel their transgender and American identities “warring” against each other, as if a certain part of their identity is “traitorous.” Or even, to borrow language from the Trump administration, “extremist.”

This brings us to the last two aspects of DuBois’s “Veil”: civic exclusion and internalization of hatred. Policy language like “men should be banned from women’s sports” exemplifies both of these things. Again, to use the process of *verstehen*, hearing this could make a transgender woman feel as if she is out of place, or even intentionally invading a space that she does not belong in—and this is precisely the point. In the context of the drivers’ licenses, language like “your current Kansas credential will no longer be valid” can be seen as othering, since the credential was invalidated purely on the grounds of the owner being transgender. This combination of policy and the rhetoric used to communicate it serves to make transgender citizens feel as though they themselves are “no longer valid,” which can lead to internalization and negative self-perception. This, as the theories of Marx and modern interpretations of them will reveal, is purely intentional.

Under Capitalism, the Body is a Prison

The final theorist I will examine this issue through is Karl Marx, notable for his theories of alienation that were foundational to his theory of labor. It may seem backwards to end with one of the earliest sociologists, on whom everyone else’s theories are based on to a certain extent. However, my aim with discussing Marx is to generalize this issue to society at large.

Marx's theories were guided by a concept of historical materialism, the idea that a society's collective ideas, norms, and ethics are guided or shaped completely by the conditions in which individuals live and work. In his own words, historical materialism means that it is "not consciousness that determines life, but life that determines consciousness."¹⁰ Thus, as with economic determinism, a capitalist economy that benefits from rigidity, a suppressed proletariat, and restricted self-expression will create social structures that socially reproduce these values.

In her essay "Judith Butler's Scientific Revolution: Foundations for a Transsexual Marxism," Rosa Lee argues that "what gender regimes share with capitalism is that they are *naturalised*" and made to seem as if they are fixed in time or permanent in some way. The institution of capitalism—the straightjacket of the corporate 9-5 workday, the car-centric urban design that requires transgender people to have a drivers' license to get to work in the first place—is made to seem like the only way of being.¹¹ However, it is precisely this mindset that keeps the proletariat captive as "wage slaves" by their bourgeoisie oppressors who monetarily benefit from the people beneath them believing that their conditions can never change. The same can be said about transgender people, according to Lee's interpretation of Judith Butler's theory of gender as a social construct.

Gender is not a fixed and unmalleable thing; rather, it is temporal, flexible, and can be something one "becomes." Think of, for instance, the prevalence of phrases like "becoming a man" or "becoming a woman" that seem to emphasize the role of *transition* in one's coming of

¹⁰ Karl Marx and Friedrich Engels, *The German Ideology*, ed. C. J. Arthur (New York: International Publishers, 1970), 47.

¹¹ Rosa Lee, "Judith Butler's Scientific Revolution: Foundations for a Transsexual Marxism," in *Transgender Marxism*, ed. Jules Joanne Gleeson and Elle O'Rourke (London: Pluto Press, 2021), 80.

age. Lee writes that “transition as a process can be considered a glimpse of the forging of new forms of solidarity that might breach a new mode of production.”¹²

Taking all of this into account, a common theme emerges: capitalism dominating “in-between” and transitional spaces. The body cannot *become* or *arrive at* something new; the body simply *is*, regardless of the person’s agency and desires, and to try to defy this is to defy the capitalistic system itself. If this is true, then perhaps a society that is open to the idea that individuals can *transition* to a new gender can also *transition* from systems of inequality towards greater social, economic, and political equality.

Positionality, Implications, and Conclusion

It is worth mentioning that I—a cisgender white man in college whose family would be able to pay the fine if necessary—am not directly affected by any of the legislation I have discussed above. I don’t even live in Kansas. However, as a member of the LGBTQ+ community who lives in a very red state, I am constantly reminded of the role political rhetoric plays in influencing a person’s sense of belonging. Texas has not (yet) passed legislation that retroactively invalidates over a thousand transgender people’s drivers licenses, but it *has* prohibited the updating of gender markers on drivers’ licenses in the future.¹³ And, as we’ve seen repeatedly, conservative politicians could be emboldened by what is happening in Kansas and decide to take it the next step further. One can only imagine the detrimental effects that

¹² Lee, “Judith Butler’s Scientific Revolution,” 84.

¹³ Manny Fernandez and Nate Schweber, “Transgender People in Texas Blocked from Changing Gender on State IDs,” *NBC News*, August 22, 2024, <https://www.nbcnews.com/news/us-news/transgender-people-texas-blocked-changing-gender-state-ids-rcna167860>.

invalidating transgender drivers' licenses could have in the Dallas-Fort Worth area, considering its limited public transportation and heavy reliance on highways and individual vehicles.¹⁴

However, Weber and DuBois provide a framework for avoiding this outcome. By attempting to empathetically understand the transgender experience (including how a policy would actually affect them in their daily activities) and combatting the tactics used to “other” them, we can begin to “transition” the political landscape away from rhetoric of transphobia. As Marxian theory suggests, reclaiming this “transitional” space is key to achieving justice—for transgender people and otherwise.

¹⁴ Brandon Formby, “Texas Cities Want Millennials Living Downtown. so Why Does the State Keep Building Highways to the Suburbs?” *The Texas Tribune*, June 26, 2018, <https://www.texastribune.org/2018/06/26/millennials-new-urbanism-texas-highway-compulsion-dallas-fort-worth/>.

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